

Service User Rights & Advocacy Policy

COMPREHENSIVE — HEALTH ACT 2007 & HIQA COMPLIANT

1 PURPOSE

To affirm and protect the rights of all service users, ensuring individuals are treated with dignity and respect, supported to make their own decisions, and empowered to raise concerns without fear of discrimination or reprisal. This policy establishes a clear framework for accessing independent advocacy services.

2 SCOPE

- ✓ All individuals receiving care or support, including residents in HIQA-registered and unregistered settings
- ✓ All staff members, management, and volunteers responsible for upholding rights and facilitating advocacy
- ✓ Aligned with the Health Act 2007, National Standards for Residential Services, and human rights legislation

3 RIGHTS OF RESIDENTS

- ✓ Be treated with dignity, fairness, and respect regardless of age, gender, ability, race, religion, or background
- ✓ Live in a safe and supportive environment free from abuse, neglect, or exploitation
- ✓ Be involved in decisions about care, support, and daily living
- ✓ Have personal privacy and confidentiality upheld; access personal records and request corrections
- ✓ Practice religion and cultural beliefs freely
- ✓ Communicate in preferred language or method, with support if needed
- ✓ Make complaints or express dissatisfaction without fear
- ✓ Access independent advocacy and representation
- ✓ Participate in activities and live as independently as possible
- ✓ Be consulted about changes in service provision that may affect them

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ADVOCACY, COMMUNICATION & INFORMED CONSENT

4 ADVOCACY SUPPORT

What is Advocacy:

- ✓ A process of supporting individuals to speak up for themselves or be represented by someone acting on their behalf
- ✓ Independent, person-centred; promotes empowerment and inclusion

Access & Role:

- ✓ Residents informed of advocacy rights during induction and at regular intervals; local services in accessible formats
- ✓ Advocates may attend meetings, assist with complaints, support understanding of rights and procedures
- ✓ Advocates operate independently and confidentially
- ✓ Management must facilitate independent advocacy and remove barriers; regular audits monitor availability

5 COMMUNICATION

- ✓ Each resident's communication preferences assessed and documented on admission
- ✓ Support via accessible information, visual aids, interpreters, or assistive technology
- ✓ Residents encouraged to express views, make choices, and participate in decision-making
- ✓ Key documents available in easy-read, large print, or translated formats
- ✓ Staff trained on communication techniques tailored to individual disabilities and preferences

6 INFORMED CONSENT

- ✓ **Definition:** Voluntary agreement with full knowledge of risks, benefits, and alternatives — given freely, without coercion
- ✓ Information provided in way resident can understand; capacity assessed per Assisted Decision-Making (Capacity) Act 2015
- ✓ Consent recorded and reviewed regularly
- ✓ **Refusal:** Residents may refuse or withdraw consent at any time; decision respected unless significant safety risk
- ✓ **Best interest:** If lacking capacity, decisions made in best interests with family/advocate involvement

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COMPLAINTS, APPEALS & POLICY REVIEW

7 COMPLAINTS & APPEALS

Right to Complain:

- ✓ Residents may complain without fear of reprisal, discrimination, or compromised care
- ✓ Complaints may be verbal, written, anonymous, or through an advocate

Procedure:

- ✓ Acknowledged within 5 working days; resolved promptly where possible
- ✓ Designated Complaints Officer oversees investigation and communication
- ✓ Records of complaints and outcomes securely maintained for audit and learning

Appeals:

- ✓ If dissatisfied with outcome, resident may lodge an appeal with senior management
- ✓ Appeals reviewed independently within a clear timeframe
- ✓ Advocacy support available throughout complaints or appeals process
- ✓ Themes from complaints/appeals reviewed regularly to inform service improvement and staff training

8 MONITORING & REVIEW

- ✓ Implementation monitored through audits, staff feedback, and resident input
- ✓ Regular reviews of complaints, advocacy access, and feedback inform continuous improvement
- ✓ Formally reviewed annually or earlier if required by legislation, HIQA standards, or internal developments

9 POLICY REVIEW

- ✓ Reviewed annually or earlier if: legislation changes, service user feedback indicates revision needed, or incident learning identifies improvements
- ✓ Registered Provider coordinates review process; revisions drafted with input from service users, staff, and advocates
- ✓ Updated policy approved by governance board; communicated to all relevant parties
- ✓ All revisions recorded in version control log; most recent version readily available to staff and residents